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# AT/EP contributions and delegated payments

Consulting proposal for Air Liquide España on occupational accident and illness (AT/EP) contributions. Review, recovery and defence before the Social Security treasury.



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01

# Context

Your situation and what is at stake



# You overpay for a classification nobody has reviewed since

Spain's Supreme Court has been clear since 2018: each employee contributes for **what they actually do**, not for the company's declared activity, under Supreme Court rulings (STS, Sentencias del Tribunal Supremo) 1550/2018 and 762/2019. With the new premium schedule and the move to the National Classification of Economic Activities (CNAE-2025), the whole reviewable period now falls under these rules.

The gap between the rate the company applies and the one the Tesorería General de la Seguridad Social (TGSS, the Social Security treasury) considers correct ends in **inspection reports, penalties or litigation**, and a wrong classification means overpaying every month.

At Ayming we believe a company should neither fear an inspection report nor pay more than it owes. The same doctrine that raises the driver's rate to 6.70% lowers the office engineer's to 1.50%, and we apply it both ways.



# Why a classification stops reflecting the real job



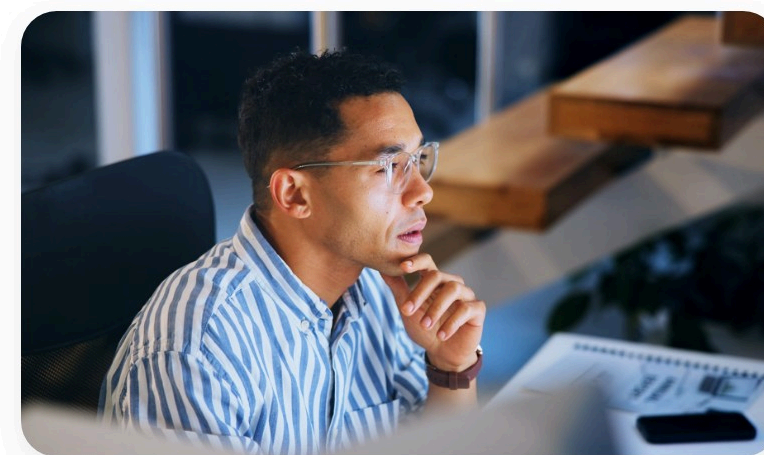
## Acquisitions and mergers

**Same job, two rates.** Each deal brings in contribution accounts with their original codes and classifications, and employees move between sites and companies without their account following them.



## Monthly settlement

**Inherited criteria, never checked.** The direct settlement system proposes each month and the company confirms. The occupation codes set on the hiring date pass from one company to another, and from one payroll team to the next, without anyone reviewing them.



## 2026 regulatory changes

**Rates that rise unnoticed.** Cuadro II, the occupation table, has been shortened and the removed occupations revert to the activity rate. And a company that did not report its CNAE-2025 code is automatically charged the highest rate in its family.



02

# Our proposal

Method, planning and follow-up





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## Review, recovery and defence of AT/EP contributions

95

SOCIAL CONTRIBUTIONS CONSULTANTS

250M€

RECOVERED FOR OUR HR CLIENTS

40

YEARS OF EXPERIENCE

65M€

BILLED IN SOCIAL CONTRIBUTIONS

For industrial groups that want to comply with the rules and pay the right amount of social contributions, Ayming International HR reviews the classification and the delegated payments, recovers the amounts overpaid and corrects the system settings, on a success fee basis.

# Two areas of study

Two different mechanisms, one data set.

## AREA 1 AT/EP contribution rates

**The goal:** declare the correct classification and contribute the right amount, correcting deviations both upward and downward.

**Compliance.** The contribution rate for workplace accidents and occupational illnesses (AT/EP) depends on the company's activity (CNAE) and on each employee's actual occupation, and the actual occupation prevails.

**Savings.** An occupation classified above its real risk overpays. Correcting it lowers the rate and allows what was paid to be recovered.



## AREA 2 Delegated temporary incapacity payments

The company **advances the benefit** and deducts it from its contribution settlement until actually reimbursed. The line shows, by days of leave, what it recovers and what it bears.

### COMMON ILLNESS • DAYS OF LEAVE

**1 to 3**

No benefit

**4 to 15**

60%, company cost

**16 to 20**

60%, INSS/Mutua cost

**From day 21**

75%, INSS/Mutua cost

### ACCIDENT AND EP • DAYS OF LEAVE

**Day 1**

Full salary

**From day 2**

75%, INSS/Mutua cost, no waiting period

The percentage is the temporary incapacity (IT) benefit applied to the benefit base. The cost borne by the Instituto Nacional de la Seguridad Social (INSS, the national Social Security institute) or by the Mutua (the Social Security collaborating mutual insurer) is advanced as a delegated payment and recovered from the settlement.



AREA 1

## AT/EP contribution rates

### Activity mapping

Analyse Air Liquide's practices and identify the activities actually carried out at each site.

### Occupation mapping

Identify the Cuadro II occupations that can give rise to a specific AT/EP rate, different from the one derived from the CNAE.

### Impact quantification

Compare the rate actually applied with the one that should have applied, and quantify historical overpayments and future savings.

### Claim and correction

Prepare the refund and correction claims before the Seguridad Social, with supporting documentation.

### Follow-up of claims and litigation

Follow administrative or court decisions through to their actual enforcement, coordinating with the competent bodies, with legal support in case of disputes or litigation.





## AREA 2

# Delegated temporary incapacity payments

## Scope identification

Identify every IT case in the period not yet time-barred, generally up to the last 4 years.

## Benefit classification

Classify each case by contingency and determine the delegated payment period and the amount involved.

## Reconciliation and quantification

Compare the amounts Air Liquide paid as delegated payments with those actually offset in the contribution settlements.

## Recovery of amounts

File the reimbursement claims with the competent body, with supporting documentation and follow-up until a decision is issued.

## Collection and litigation

Collect the reimbursements once decided, coordinating with the competent bodies, with legal support in case of disputes or litigation.



# Documents required

What we need from Air Liquide to start each area of the study.



## GENERAL

- List of entities, work sites and contribution account codes (CCC, códigos cuenta de cotización), with current and historical CNAE, and of the mergers, acquisitions and reorganisations that affected the scope analysed
- Historical employee master file: ID, entity/CCC, site, job, dates of hire/exit/job change and occupation code applied
- Payroll extract for the last 4 years (Excel/CSV format)
- Contribution settlement receipt (RLC, Recibo de Liquidación de Cotizaciones) for each settlement period
- Calculation and contribution base files from the direct settlement system (SLD, Sistema de Liquidación Directa), if available



## AT/EP RATES

- Job descriptions, with their occupational risk assessments
- Documentation of the activity carried out at each site: activity licences, activity descriptions, occupational risk prevention (PRL) documentation, any document that shows the functional and operational separation of the activities



## IT DELEGATED PAYMENTS

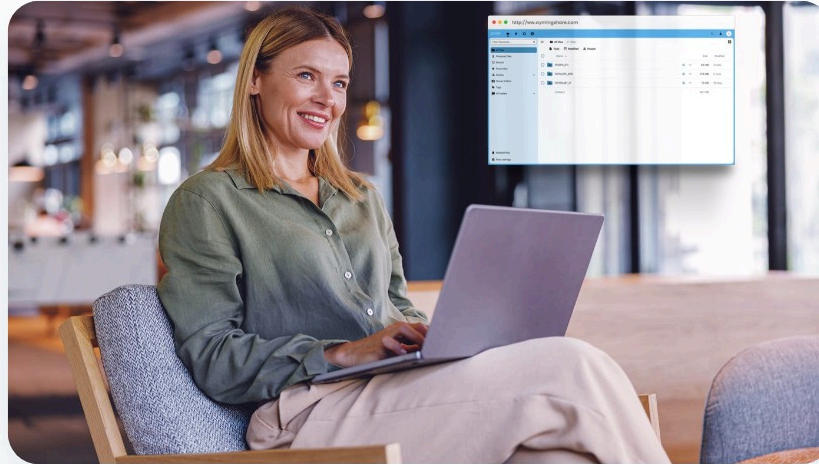
- Association agreements with Mutuas and coverage history by CCC, stating the contingencies covered
- FIE/FIER file, if available
- Detail of benefits paid as delegated payments: worker, contingency, dates, benefit base and amount paid

# Ayming Share, your secure workspace

Ayming's secure, collaborative online platform for exchanging the documents of the assignment.

## Share and collaborate

- Share and exchange data and documents.
- Communicate and work together.
- Alerts on new document uploads, through notifications.
- Anticipate the next steps.
- Speed up exchanges and decisions.



## Protect your data

- Hosting managed by Ayming.
- Access through username, password and captcha.
- Encrypted data.
- Detection of fraudulent access attempts.
- Site access control system.



ISO 27001 certification covering information security management, and HDS certified health data hosting through Ayming Digital.

# Working methodology



## Service follow-up

- Regular meetings to review the status of the projects.
- Review of disputed cases: IT benefits not deducted in time, CNAE code by site, Cuadro II overpayment or poorly defined jobs.
- Transparency on risks.
- Steering Committee: quarterly senior meetings to align objectives and decisions.



## Structured reporting

- Fortnightly progress report with completed activities and next milestones.
- Visibility of progress through indicators agreed with Air Liquide.
- Ongoing communication with a single technical contact, always reachable.



## Control and traceability

- Central document repository through Ayming Share.
- Documentation of the positions taken on disputed cases.
- Legal opinions on complex cases with no existing case law.

# Planning

## PHASE A • Diagnostic and quantification

## PHASE B • Correction and recovery

### PHASE A1 Scoping 2 weeks

- Collection of the required documentation
- Scope
- Work plan
- Timeline

#### DELIVERABLES

Documentation list  
Project plan and stages

### PHASE A2 Diagnostic 2 weeks

- Review of current practices
- CNAE applied
- AT/EP rates
- Contributions paid
- IT delegated payments

#### DELIVERABLES

Legal and technical assessment report  
Risk summary

### PHASE A3 Validation 4 weeks

- Determination of the appropriate changes
- Appropriate CNAE codes
- Review of occupations
- Detection of IT benefits not offset

#### DELIVERABLES

Classification and IT benefit analysis report  
Technical justification file

### PHASE A4 Quantification 2 weeks

- Calculation of the overpaid contributions and the recoverable amounts, for both AT/EP and IT delegated payments

#### DELIVERABLES

Contribution review report  
List of corrections identified

### PHASE B5 Correction 2 weeks

- Filing of the claims and defence before the competent bodies

#### DELIVERABLES

Legal submissions ready  
Report on the proceedings

### PHASE B6 Recovery Depends on the authorities

- Follow-up until the amounts are actually recovered
- Amicable settlement if challenged, or court action, led by the partner law firm

#### DELIVERABLES

Recovery follow-up report  
Periodic reimbursement report  
Final results report

**Cross-cutting phase.** End-to-end process management, periodic reports, transparency and coordination between all the parties involved. Document management and custody, risk control and regulatory compliance. **Phase C,** support from a specialised consultancy.



03

# About Ayming

Our references and international presence



# A global answer, delivered locally

Ayming International HR centralises the social contributions practice so the best specialists can be mobilised on every assignment, and delivers the service in country.

1

## One centre of excellence, not scattered offices

We concentrate the social contributions practice in a single team of 95 specialist consultants instead of spreading it across country headcounts. Capacity is assigned by specialism, not by geography.



2

## Ayming International HR mobilises on your case

Ayming International HR puts the best specialists of the mechanism on every assignment, with data analysts, a single methodology and strategic account management, backed by quality and R&D.



3

## The assignment is delivered in Spain

The assignment runs in country, in Spanish, with a local presence, an independent Spanish law firm chosen by mutual agreement, and direct dealings with the authorities.

**A local advisory firm is limited to its own headcount. Air Liquide gets the full bench of the group.**

# Our strategy at work, three examples

This offer is not the only one built this way. Three examples from the group, in managed services, software and consulting.



## MANAGED SERVICES

### Accident reporting in 28+ countries

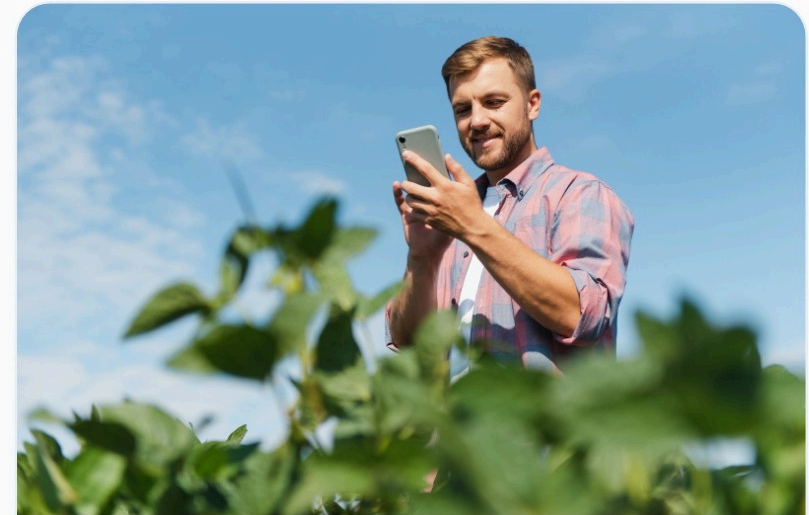
Ayming International files through the local forms and systems of each country: Net-entreprises in France, Sistema Delt@ and CoNTA in Spain, the INAIL report in Italy.



## SOFTWARE

### HSE audits and inspections

One audit module applied country by country, aligned with the international standards ISO 45001 and ISO 14001.



## CONSULTING

### Sustainability and environment

An international view with a local focus: environmental taxes, energy saving certificates, grants and ESG reporting compliant with CSRD.

## Benefiting from local proximity and the local experience it takes...

Our teams support our clients day to day, drawing on an **ecosystem of professionals** across the country: independent law firms specialising in social security, graduados sociales, chartered accountants and independent doctors, present in Madrid, Barcelona and Valencia.



... with the strength of the whole Ayming International HR team, Europe's leader in social contributions



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# Clients who already trust Ayming

+2,500

Clients in Spain



+10 million

Payslips analysed per year

*Management of workplace accidents and occupational illnesses*



8,490

Clients across every sector

*Command of social contributions*



# An ideal solution



Full review of the classification: CNAE codes and a 360° diagnostic of the jobs, occupations and rates applied, based on historical data and operational reality.



Thorough review of IT delegated payments, identifying the amounts not offset and the recovery opportunities.



Quantification of the recoverable amounts and the recurring savings.



Full handling before the authorities: claims, information requests and administrative defence, through to actual reimbursement and correction of the system settings.



A team of experts, fully dedicated and ready to mobilise immediately.



Clear governance: periodic reporting, traceable positions, transparency on risks and digital tools for exchanging information.





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**Air Liquide**

**Thank you.**



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